

acquisition of the land by the Estates Commissioners: Provided that the tenant shall sign such consent in the presence of two witnesses present at the same time, who shall attach their names thereto, and, when so signed and witnessed, that the said consent shall be filed as a record in the office of the Land Commission.

2. This Act shall be construed as one with the *Evicted Tenants (Ireland) Act, 1907*, and the said Act of 1907 shall be construed and take effect from the date of its passing as if this Act had then formed part thereof. Construction. 7 Edw. 7. c. 56.

3. This Act may be cited as the *Evicted Tenants (Ireland) Act, 1908*, and may be cited with the *Evicted Tenants (Ireland) Act, 1907*, as the *Evicted Tenants (Ireland) Acts, 1907 and 1908*. Citation.

CHAPTER 23.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) For the purpose of local loans there may be issued by the National Debt Commissioners the following sums, namely:— Grants for public works.

(a) For the purpose of loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of three million pounds;

(b) For the purpose of loans by the Commissioners of Public Works in Ireland any sum or sums not exceeding in the whole the sum of seven hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the *National Debt and Local Loans Act, 1887*. 50 & 51 Vict. c. 16.

2. Whereas it is expedient that the principal of the several local loans specified in the Schedule to this Act should, to the extent specified in the last column of that Schedule, not be reckoned as assets of the local loans fund established under the *National Debt and Local Loans Act, 1887*; therefore, the principal of the said loans shall to that extent be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto. Certain debts not to be reckoned as assets of local loans fund.

Remission of claims against the Sligo, Leitrim, and Northern Counties Railway.

3. Whereas the Commissioners of Public Works in Ireland, in the years eighteen hundred and seventy-nine and eighteen hundred and eighty, made advances amounting in all to the sum of ninety-nine thousand six hundred and twenty-five pounds to the Sligo, Leitrim, and Northern Counties Railway Company by way of mortgage, and such advances were repayable by instalments with interest at the rate of five per cent. per annum :

And whereas the said principal sum of ninety-nine thousand six hundred and twenty-five pounds has been repaid :

And whereas the receipts of the railway proved insufficient to meet the interest and arrears of interest, amounting to thirty-two thousand nine hundred and nine pounds and twopence accrued due up to the fifth day of July eighteen hundred and ninety-seven, and are unpaid :

Therefore the said arrears of interest remaining unpaid, and amounting to thirty-two thousand nine hundred and nine pounds and twopence, shall be remitted, and shall be deemed to be a free grant by Parliament.

Remission of claims against the Limavady and Dungiven Railway.
1 & 2 Will. 4.
c. 33.
40 & 41 Vict.
c. 27.

4. Whereas the Commissioners of Public Works in Ireland advanced under the Public Works (Ireland) Act, 1831, and the Public Works Loans (Ireland) Act, 1877, to the Limavady and Dungiven Railway Company in the year eighteen hundred and eighty-three the sum of nineteen thousand six hundred and one pounds for the purpose of aiding in the construction of a railway between Limavady and Dungiven, in the county of Londonderry :

And whereas by the Midland Railway Act, 1907, an agreement for sale of the said railway to the Midland Railway Company, freed and discharged from all incumbrances, liabilities, contracts, debts, and engagements of the Limavady and Dungiven Railway Company, for the sum of two thousand pounds was confirmed, and the said purchase money has since been paid :

And whereas the principal sum of seventeen thousand six hundred and one pounds, being the balance of the said sum of nineteen thousand six hundred and one pounds, with arrears of interest amounting* to twelve thousand two hundred and thirty-two pounds three shillings and one penny, now remains unpaid :

Therefore the balance of the said debt, amounting to seventeen thousand six hundred and one pounds, shall be extinguished, and the said arrears of interest, amounting to twelve thousand two hundred and thirty-two pounds three shillings and one penny, shall be remitted, and the said balance of principal and arrears of interest shall be deemed to be a free grant by Parliament.

Remission of claims against the Fishguard and Rosslare

5. Whereas the Commissioners of Public Works in Ireland advanced under the Public Works (Ireland) Act, 1831, and the Public Works Loans (Ireland) Act, 1877, to the Waterford and

Wexford Railway Company, now the Fishguard and Rosslare Railways and Harbours Company, in the year eighteen hundred and eighty, the sum of fifty-three thousand pounds for the purpose of aiding in the construction of a railway between the town of Wexford and Rosslare Pier, both situate in the county of Wexford :

Railways and
Harbours
Company.

And whereas under the provisions of the Fishguard and Rosslare Railways and Harbours Act, 1894, the Fishguard and Rosslare Railways and Harbours Company, by payment of the sum of ten thousand pounds in the year nineteen hundred and seven, redeemed their liability under the said Act in respect of the incumbrancers' moiety of the surplus receipts arising from the Wexford Railway undertaking in the said Act defined :

And whereas the proportion of the said sum of ten thousand pounds to which the said Commissioners were entitled was the sum of seven thousand nine hundred and forty-six pounds and sixpence, and the same sum was in the year nineteen hundred and seven paid by the said company to the said Commissioners :

And whereas the principal sum of forty-five thousand and fifty-three pounds nineteen shillings and sixpence, being the balance of the said sum of fifty-three thousand pounds, with arrears of interest amounting to thirteen thousand nine hundred and eighty pounds seventeen shillings and fourpence, now remains unpaid :

And whereas by the Public Works Loans (No. 2) Act, 1893, the principal sum of thirty-eight thousand pounds, part of the said sum of fifty-three thousand pounds, was written off from the account of assets of the local loans fund :

56 & 57 Vict.
c. 40.

Therefore the balance of the said principal debt, amounting to seven thousand and fifty-three pounds nineteen shillings and sixpence, and the said principal sum of thirty-eight thousand pounds shall be extinguished, and the said arrears of interest, amounting to thirteen thousand nine hundred and eighty pounds seventeen shillings and fourpence shall be remitted, and the said balance of principal, the said principal sum, and the said arrears of interest shall be deemed to be a free grant by Parliament.

6.—(1) The Public Works Loan Commissioners may, in manner provided by the Public Works Loans Act, 1875, as amended by any subsequent enactment, lend any money which may be borrowed for the acquisition of land, or the purchase, erection, construction, alteration, or enlargement of any building or permanent work by a county association formed under the Territorial and Reserve Forces Act, 1907, in pursuance of regulations made by the Army Council under section four, subsection (1)(c), of that Act, and may so lend on the security on which the county association is similarly authorised to borrow.

Addition to
purposes for
which Public
Works Loan
Commissioners
may lend.

58 & 59 Vict.
c. 39.
Edw. 7. c. 9

(2) Every loan by the Public Works Loan Commissioners under this section shall be repaid within a period not exceeding

60 & 61 Vict.
c. 51

fifty years, and shall bear interest at such rate as may be prescribed for the time being by a minute of the Treasury under section one of the Public Works Loans Act, 1897, for loans on the security of local rates.

Short title.

7. This Act may be cited as the Public Works Loans Act, 1908.

Section 2.

SCHEDULE.

LOANS BY THE COMMISSIONERS OF PUBLIC WORKS, IRELAND.

(1) *Loan under the Drainage Maintenance Act, 1866* (29 & 30 Vict. c. 49).

Name of Proprietor.	Amount of Loan.	Amount to be written off.
Michael Reilly, late of Drumlish, co. Longford.	£ s. d. 0 13 6	£ s. d. 0 10 9

(2) *Loans under the Drainage and Improvement of Lands (Ireland) Act, 1863* (26 & 27 Vict. c. 88).

Name of Proprietor.	Amount of Loan.	Amount to be written off.
Major Phineas Bury, Kylevarragh South, Adare, County Limerick.	£ s. d. 227 16 10	£ s. d. 222 15 2
Miss Isabel K. O'Dell, Cappagh, County Limerick.	145 17 2	35 1 0

(3) *Loans under the Landed Property Improvement (Ireland) Act, 184* (10 Vict. c. 32).

Name of Borrower.	Amount of Loan.	Amount to be written off.
Wm. Ryan, Parkroe, Cappawhite, County Tipperary.	£ 100.	£ s. d. 16 8 5
Sundry items - - - -	—	3 12 5

(4) *Loan under the Landlord and Tenant (Ireland) Act, 1870*
(33 & 34 Vict. c. 46).

Name of Borrower.	Amount of Loan.	Amount to be written off.
Wm. Ryan, Parkroe, Cappawhite, County Tipperary.	£ 266	£ s. d. 22 16 3

(5) *Loans under the Land Law (Ireland) Act, 1881*
(44 & 45 Vict. c. 49. s. 31).

Name of Borrower.	Amount of Loan.	Amount to be written off.
P. Dunlap Coganla, Westport, County Mayo.	£ 55	£ s. d. 13 15 4
William Kells Carnroe, Scottshouse, Clones, County Monaghan.	70	44 12 10
Thomas Carr, Drumatrumman, Kerry-Keel, County Donegal.	50	23 1 5

(6) *Loans under the Public Works (Ireland) Act, 1831 (1 & 2 Will. 4. c. 33), and the Public Works Loans (Ireland) Act, 1877 (40 & 41 Vict. c. 27).*

Name of Borrower.	Amount of Loan.	Amount to be written off.
Waterford and Wexford Railway, now the Fishguard and Rosslare Railways and Harbours Co.	£ 53,000	£ s. d. 7,053 19 6
Limavady and Dungiven Railway Co.	19,601	17,601 0 0

CHAPTER 24.

An Act to amend the Law relating to Drunkenness in Ireland, and for purposes connected therewith.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where a court of summary jurisdiction is satisfied by evidence produced before it that a married man is a habitual drunkard, As to married men when habitual drunkards,